

1. Motion to Compel the Deposition of Samir Jizrawi and Production of Documents, and for Monetary Sanctions, filed by Peter Jizrawi on 7/6/26.
2. Motion to Compel the Deposition of Souhail Jizrawi and Production of Documents, and for Monetary Sanctions, filed by Peter Jizrawi on 7/6/26.
3. Motion to Disqualify Counsel, filed by Samir Jizrawi on 7/24/26.
4. Motion to Compel the Deposition of Souhail and Souhail Jizrawi and Production of Documents, and for Monetary Sanctions, filed by Peter Jizrawi on 8/11/26.

Ruling. The **Motion to Disqualify Counsel** filed by Samir Jizrawi on 7/24/26 and **Joinder** filed by Souhail Jizrawi on 7/6/26 are **denied** as set forth below. **All parties are ordered to appear** to address the remaining discovery motions.

Introduction

The Court has considered the motion of Respondent Samir Jizrawi to disqualify Petitioner Peter Jizrawi's counsel, and the joinder filed by Respondent Souhail Jizrawi. In the motion, Samir [\[1\]](#) seeks to disqualify Christopher R. Ulrich of Murphy, Pearson, Bradley & Feeney, P.C., and co-counsel Nancy C. Field of Nancy C. Field Law, Inc. The Court has reviewed the parties' submissions, including declarations, deposition excerpts, exhibits, and the authorities cited. For the reasons set forth below, the motion and joinder are denied.

Background

This probate matter concerns Peter's efforts to administer the estate plan of the decedent, Julie Jizrawi, against objections raised by her sons, Samir and Souhail. The disqualification motion arises from witness-preparation meetings in prior litigation in which Peter was a party and Mr. Ulrich served as Peter's counsel. Samir contends those meetings created an attorney-client relationship and imparted confidential information later used against him in this action. Peter opposes, arguing there was no attorney-client relationship with Samir, no identified material confidence belonging to Samir, no substantial relationship between the subjects of the prior and current matters, and an unreasonable delay in bringing the motion. Souhail's joinder asserts independent prejudice and an advocate-witness conflict.

Legal Standard

Disqualification is a drastic remedy that should be granted sparingly, with the moving party bearing the burden to establish the factual and legal bases for removal of opposing counsel. *People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc.*, (1999) 20 Cal.4th 1135, 1145. Where successive representation is alleged, the threshold inquiry is whether an attorney-

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client relationship existed in the prior matter. Only if that predicate is met does the substantial relationship analysis under Rule 1.9 of the Rules of Professional Conduct (Rule 1.9) apply. *SpeedDee Oil, supra*, 20 Cal.4th at 1147; *Jessen v. Hartford Casualty Ins. Co.*(2003) 111 Cal.App.4th 698, 706-707.

Analysis

A. No Attorney-Client Relationship Was Formed Between Samir and Petitioner’s Counsel

Samir bears the burden to show that an attorney-client relationship arose in the prior matter based on the totality of the communications and reasonable expectations. *SpeedDee Oil, supra*, 20 Cal.4th at 1147-1148. The record, as a whole, does not support that conclusion.

Samir’s contemporaneous account of the meetings given during his February 19, 2024 deposition describes an interview initiated by counsel and an investigator “to ask me if I know anything” about the case, including whether he had seen or heard anything relevant, which is consistent with fact-gathering for Peter’s defense rather than legal consultation for Samir’s own rights or interests. In that testimony, Samir stated he understood the investigator to have been engaged by “the lawyer,” and he twice characterized the exchange as answering what he knew, not seeking or receiving advice for himself. In the same session, when first asked whether he had spoken with “these lawyers” before testifying and whether he was in communication with anyone about the case, Samir answered no multiple times. These statements are inconsistent with a reasonable belief that counsel represented him.

Samir identifies no legal advice provided to him regarding his own rights, liabilities, or interests. The investigator’s June 23, 2023 notes reflect counsel pressing Samir for candor and “significant evidence,” accusing him of “holding back,” and emphasizing “we needed the truth,” but they record no advice to Samir about his personal legal position. Telling a witness to be truthful and complete does not, without more, constitute legal advice to that witness about the witness’s rights or exposure under *SpeedDee Oil’s* standard.

Other facts support the conclusion that no attorney-client relationship existed between Samir and Mr. Ulrich. There is no engagement letter, fee agreement, bill, or conflict waiver between Samir and counsel or counsel’s firm. Mr. Ulrich identified himself to Samir in writing and voicemail as “your father’s attorney” and “Peter’s attorney.” On Peter’s behalf, Mr. Ulrich cross examined Souhail at Souhail’s January 22 2024 deposition and prepared Samir as a witness favorable to Peter at Samir’s February 19, 2024 deposition. Samir was not represented by Mr. Ulrich at that proceeding and he never sought or received legal advice from Mr. Ulrich. On this record, Samir has not met his burden to establish that an attorney-client relationship formed.

B. Even Assuming a Relationship, Samir Has Not Shown Material Confidential Information Belonging to Him Was Obtained or Used

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Rule 1.9 protects a former client's confidential information material to the later matter. Samir has not identified a specific material confidence belonging to him communicated in the prior meetings. The deposition passages relied upon reference "your brother's account of what happened," and Samir answered "Vaguely" when asked about prior discussions on that point. On this showing, the Court cannot presume into existence confidential information of Samir that is material to the present probate claims.

C. The Prior Matter Is Not Shown To Be Substantially Related To The Issues For Trial Here

The substantial relationship doctrine is not reached unless the movant first establishes a former attorney-client relationship with the challenged lawyer. (*SpeedDee Oil, supra*, 20 Cal.4th 1135, 1147–1148; *Jessen, supra*, 111 Cal.App.4th 698, 706–707.) Here, the record cited by the parties reflects witness fact-gathering for Peter's defense rather than legal advice or services rendered to Samir. Samir testified in the prior matter that counsel and an investigator "came to ask me if I know anything," asked what he had "seen" or "heard," and he "would imagine the lawyer" retained the investigator, while earlier denying he had spoken with "these lawyers" before testifying. The contemporaneous investigator notes likewise reflect pressure for candor and "significant evidence," not legal counseling of Samir about his own rights. Counsel also identified himself to Samir as "your father's attorney" and "Peter's attorney," and there is no engagement letter, fee agreement, billing, or conflict waiver with Samir. On that record, the threshold predicate for applying Rule 1.9 and the substantial relationship presumption is not shown. *SpeedDee Oil, supra*, 20 Cal.4th at 1147–1148; *Jessen, supra*, 111 Cal.App.4th at 706–707.

Even assuming *arguendo* a prior relationship, Samir must show the former and current matters are "substantially related" by demonstrating that confidential information material to the present dispute would normally have been imparted in the former matter; generalized overlap in parties or subject matter is insufficient. *H.F. Ahmanson & Co. v. Salomon Brothers, Inc.* (1991) 229 Cal.App.3d 1445, 1452–1455; *Jessen, supra*, 111 Cal.App.4th at 709–713; *Faughn v. Perez* (2006) 145 Cal.App.4th 592, 603.

The prior Giragossian matter involved a personal family dispute in which Samir was contacted as a fact witness, while this probate proceeding turns on the validity of Julie Jizrawi's estate instruments (2011–2018), the effect of a 2022 revocation (Fam. Code, § 761), and Samir's promissory estoppel claim to 108 Bellam. Samir does not identify any Samir-owned confidential information from the witness interviews that is material to those probate issues; the only concrete example cited is counsel's deposition reference to having discussed "your brother's account of what happened," to which Samir answered "Vaguely," with no privilege objection asserted at the time. That showing does not satisfy the substantial relationship test, and the presumption of shared confidences cannot be used to supply missing proof of material confidences. *Flatt v. Superior Court* (1994) 9 Cal.4th 275, 283; *Jessen, supra*, 111 Cal.App.4th at 706–713.

D. Samir's Delay Weighs Against Disqualification

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Courts may deny disqualification where there is unreasonable delay coupled with prejudice. *River West, Inc. v. Nickel* (1987) 188 Cal.App.3d 1297, 1309-1311; *Liberty National Enterprises, L.P. v. Chicago Title Ins. Co.* (2011) 194 Cal.App.4th 839, 845-848. Samir acknowledges he “initially believed that Mr. Ulrich’s representation of my father in this action was of a minor concern,” reflecting awareness and an election not to object until later. Trial is set for October 5, 2026, and the requested remedy would deprive Petitioner of long-standing counsel weeks before trial. On balance, the timing and resulting prejudice further support denial.

E. Souhail Lacks Standing And Fails To Establish An Advocate-Witness Conflict

A non-client generally lacks standing to seek disqualification absent a duty of confidentiality owed to the movant. *Great Lakes Construction, Inc. v. Burman* (2010) 186 Cal.App.4th 1347, 1356. Souhail does not assert an attorney-client relationship or confidential disclosures to counsel. He was adverse to Peter in prior litigation and remains adverse here. The exception for duties owed to a non-client does not apply. The exception applies when counsel owes a non-client a duty of confidentiality (*Dino v. Pelayo* (2006) 145 Cal.App.4th 347, 352.) Souhail makes neither claims that he was a client of Mr. Ulrich’s nor that he ever disclosed to counsel anything which would invoke this exception.

“A lawyer shall not act as an advocate in a trial in which the lawyer is likely to be a witness unless: (1) the lawyer's testimony relates to an uncontested issue or matter; (2) the lawyer's testimony relates to the nature and value of legal services rendered in the case; or [¶] (3) the lawyer has obtained informed written consent from the client.” (Rule of Prof. Conduct, Rule 3.7(a).) Rule 3.7 of the Rules of Professional Conduct restricts an advocate who is “likely to be a witness” on a contested, material issue. *Doe v. Yim* (2020) 55 Cal.App.5th 573, 582. The issues for trial concern the validity of Julie Jizrawi’s testamentary instruments, the 2022 revocation, and Samir’s promissory estoppel claim, not collateral conversations about public lawsuits involving Souhail. Statements made by counsel during a deposition are not evidence, and the transcript is not admissible to prove counsel’s assertions. On this record, Souhail has not shown that counsel’s testimony is necessary or that any advocate-witness concern would prejudice him.

Conclusion and Order

Samir has not established the existence of an attorney-client relationship with Petitioner’s counsel in the prior matter, has not identified any material confidential information of his that was obtained or used in the present proceeding, and has not shown a substantial relationship between the subjects of the prior meetings and the issues to be tried in this case. The delay in raising the objection and the prejudice that would result on the eve of trial further counsel against the extraordinary remedy of disqualification. Souhail lacks standing to seek disqualification on the facts presented and has not demonstrated that Rule 3.7 is implicated.

Accordingly, the motion to disqualify counsel and the joinder are DENIED.

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[\[u\]](#) The Court uses the parties' first names for clarity and means no disrespect in doing so.

PR0001112 IN THE MATTER OF JOYCE M. ROWLEY

Second Report of Executor on Status of Administration, filed by Carol Lynch on 8/6/26.

Ruling. Absent objections, the Report of Status of Administration is **accepted and approved**. Personal Representative is **ordered to comply** with the following future dates:

1. Status on Closing Estate.
 - a. Either: (1) a Petition for Final Distribution; or (2) a Report of Status of Administration shall be **filed by November 12, 2026**, as required by Probate Code sections 12200-12201.
 - b. A status hearing re filing the Petition or Report shall be **set on December 3, 2026, at 10:00 a.m.**
 - i. If neither document has been timely filed, an appearance will be required.
 - ii. If the Petition or Report is timely filed, the hearing will be set on December 3, 2026, at 9:00 a.m.

PR0001465 IN THE MATTER OF DONALD E. JENSEN AND BILLIE B. JENSEN REVOCABLE LIVING TRUST DATED JUNE 20, 2011

Petition for Order Confirming Trust Assets and for Instructions, filed by Mark Jensen and Andrea Guarino-Slemmons on 9/12/25.

Ruling. This matter is **continued to October 15, 2026, at 9:00 a.m.** Petitioner is **ordered to comply** with the 6/5/26 Court Order requiring that notice be served using the mandatory form "Notice of Hearing on Petition to Determine Claim to Property." (Judicial Council Forms, form DE-115.) The Court notes that while such notice is to be served in the manner set forth by Code of Civil Procedure section 413.10, et seq., no summons is required. (Prob. Code, § 17203(b).)

PR0001515 IN THE MATTER OF THE APARTON FAMILY TRUST U/D/T 9/4/1991 AS RESTATED SEPTEMBER 17, 2024

Order to Show Cause re Dismissal of Petition to Invalidate Trust Restatement, Due to Notice of Settlement of Entire Case filed on 2/5/26.

Ruling. This matter is **ordered off calendar** pursuant to the Dismissal entered on 7/7/26.

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